

**In The Matter of The William R. and Gloria I. Garibaldi
Living Trust**

26PR000103

AMENDED PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY
[Filed 5/29/26]

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B. Petitioner is directed to serve the petitioning documents on, and provide sufficient notice of the continued hearing to, Decedent Gloria I. Garibaldi's grandchildren listed as specific gift, and remainder, beneficiaries in the Third and Fourth Amendments to the Trust, attached as Exhibit A to the Amended Petition. (See Prob. Code, §§ 851, subd. (b)(3), 17203, subd. (a)(2).)

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jon Carstens v. Covidien, Inc. et al

23CV000953

COVIDIEN DEFENDANT'S MOTION TO CONTINUE TRIAL

APPEARANCE REQUIRED: The parties are directed to appear prepared to: (1) inform the Court whether there is any opposition to the Motion; and (2) discuss new trial dates.

The Motion was not properly noticed for hearing. June 19, 2026, and July 3, 2026, were Court holidays. Thus, June 9, 2026, was the last day for service, by electronic means, of Notice and moving papers set for hearing on July 7, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).)

However, requests to continue trial may be made ex parte. (See Cal. Rules of Court, rule 3.1332(b).) The Court would, therefore, like to hear from the parties regarding the substance of the Motion.

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Adam Sutton v. Eikos, Inc

23CV001258

PLAINTIFF'S MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT
AND REQUEST FOR ATTORNEY'S FEES, COSTS, AND CLASS REPRESENTATIVE
SERVICE PAYMENT

TENTATIVE RULING: The motion for final approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Settlement Compliance Hearing on November 7, 2026, at 8:30 a.m. in Dept. A

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Wells Fargo Bank, N.A. v. Phillip P Coulter

24CV002239

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT PURSUANT TO
STIPULATION**

TENTATIVE RULING: The motion is DENIED.

Wells Fargo Bank, N.A. (Plaintiff) moves, pursuant to Code of Civil Procedure section 664.6, to vacate the dismissal in this instant matter and enter Judgment pursuant to the Parties' Stipulation.¹

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

The unspoken inference in Plaintiff's argument is that Section 664.6 authorizes the Court to vacate an order dismissing the action. Plaintiff fails to support the inference with discussion, argument, or citation to case law.

Because the matter was dismissed, by stipulation of the parties, on May 15, 2025, the Court lacks jurisdiction to enter the requested judgment.

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court...for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (§ 664.6, subd. (a).)

As the Court reads the statute, it permits parties to a settlement agreement to move the Court to enter judgment on the action, *and under those circumstances*, to retain jurisdiction to enforce the settlement. The Court can find no language in the statute that would permit the Court

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.